

Prepared by:
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8411 Patterson Ave., Ste A
Tuckahoe, VA 23229

Consideration: 350,000.00

Tax Parcel ID: 7757-69-4003

DEED OF TRUST

THIS DEED OF TRUST is made as of _____, by and between VBS Realty, Inc., a _____ corporation, whose address is _____ (“Grantor”), to _____, whose address is _____ (“Trustee”), for the benefit of Greenlawn Memory Gardens, Inc., d/b/a Roselawn Memory Garden, whose address is _____ (“Beneficiary”).

Grantor, for the purpose of securing payment of the indebtedness described below and performance of the covenants herein, hereby grants, bargains, sells, conveys, and assigns to Trustee, in trust, with power of sale, the real property described below, together with all improvements, fixtures, easements, rights, and appurtenances belonging thereto.

The indebtedness secured by this Deed of Trust consists of a Promissory Note of even date herewith executed by Grantor in favor of Beneficiary in the original principal amount of Three Hundred Fifty Thousand Dollars (\$350,000.00), with interest at the fixed rate of six percent (6.00%) per annum, providing for monthly payments of Five Thousand Dollars (\$5,000.00), a term of sixty (60) months, and a balloon payment of the remaining principal balance and accrued interest at maturity, together with all renewals, extensions, modifications, and advances related thereto (the “Note”).

The property securing this Deed of Trust is located in the Commonwealth of Virginia and is more particularly described as follows:

Street Address: 13261 Mountain Road, Glen Allen, VA 23059

Tax Parcel ID: 7757-69-4003

Parcel Size: 10 acres

The full legal description of the property shall be attached hereto as Exhibit A and incorporated herein by reference.

See Exhibit ‘A’ attached

Grantor covenants and agrees to pay the indebtedness secured hereby in accordance with the terms of the Note, including principal, interest, and any other sums due thereunder. Grantor

shall pay all real estate taxes, assessments, and governmental charges against the property prior to delinquency. Grantor shall maintain the property in good repair and shall not commit waste. Grantor shall maintain insurance on the property in such amounts and against such hazards as Beneficiary may reasonably require, naming Beneficiary as an additional insured or loss payee as applicable. Grantor shall comply with all applicable laws, ordinances, zoning regulations, and environmental requirements affecting the property.

Grantor shall not sell, convey, lease, transfer, or encumber any interest in the property without the prior written consent of Beneficiary. Any unauthorized transfer shall constitute an event of default.

An event of default shall occur upon failure to make any payment required by the Note within ten (10) days of its due date, failure to perform any covenant contained in the Note or this Deed of Trust, failure to pay taxes or maintain required insurance, or insolvency or dissolution of Grantor.

Upon the occurrence of an event of default, Beneficiary may declare the entire indebtedness immediately due and payable. At the direction of Beneficiary, Trustee may sell the property at public auction in accordance with Virginia Code § 55.1-321 et seq., after advertisement and notice as required by law. The proceeds of sale shall be applied first to the costs and expenses of sale, including trustee and attorney fees, second to payment of the indebtedness secured hereby, and any surplus as required by law.

Trustee shall have all powers granted under Virginia law, including the power to appoint a substitute trustee upon written request of Beneficiary.

Grantor agrees to pay all reasonable costs and expenses incurred by Beneficiary in protecting or enforcing its rights under this Deed of Trust or the Note, including attorneys' fees and trustee fees, to the extent permitted by Virginia law.

Prepayment of the indebtedness shall be governed by the terms of the Note. No prepayment penalty shall apply unless expressly stated in the Note.

Upon payment in full of all sums secured hereby, Beneficiary shall cause this Deed of Trust to be released of record at Grantor's expense.

This Deed of Trust shall be governed by and construed in accordance with the laws of the Commonwealth of Virginia. The covenants herein shall bind Grantor and Grantor's successors and assigns and shall inure to the benefit of Beneficiary and Beneficiary's successors and assigns.

IN WITNESS WHEREOF, Grantor has executed this Deed of Trust as of the date first written above.

VBS Realty, Inc.

By: _____

Name: _____

Title: _____

Accepted:

Greenlawn Memory Garden, Inc.

d/b/a Roselawn Memory Garden

By: _____

Name: _____

Title: _____

Trustee:

Signature and Date

Commonwealth of Virginia

County/City of _____

The foregoing instrument was acknowledged before me this ____ day of _____, **20**, by
_____, as _____ of VBS Realty, Inc.,
on behalf of the corporation.

Notary Public: _____

My Commission Expires: _____

Registration No.: _____